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California legislators want to help Nevada toughen its gun laws

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SACRAMENTO — Democratic legislators are seeking to collaborate on gun policy with neighboring states after a mass shooting in Gilroy last month exposed the limits of California's strict laws.

In a letter Wednesday, 27 California lawmakers invited Nevada Assembly Speaker Jason Frierson and his colleagues to hold a legislative summit this fall "to discuss avenues for interstate cooperation on gun safety reform."

The lead topic: How to stop guns outlawed in California from flowing across the border from other states. The man who killed three people and wounded 13 others at the Gilroy Garlic Festival on July 28 used a model of semiautomatic rifle banned in California that he was able to purchase legally in Nevada.

"While California has enacted numerous gun safety measures, this tragedy underscores the need for California to work closely with neighboring states to close loopholes and advance common sense gun safety measures," the letter stated.

Assemblywoman Buffy Wicks, an Oakland Democrat who helped organize the letter, said California is stepping into the void left by a "total failure of leadership" in Washington, D.C. A recent spate of mass shootings — including in Gilroy, El Paso, Texas, and Dayton, Ohio — revived discussions in Congress and the White House about passing new gun control measures, but President Trump has since backed away from those proposals.

"Frankly, Donald Trump has blood on his hands" for his inaction, Wicks said.

In the absence of federal legislation to require background checks for private gun sales or other policies that would bring the rest of the country more in line with California, she said, state lawmakers are hoping to increase cooperation with bordering Nevada, Arizona and Oregon.

"The challenge we have is, it's a porous state," Wicks said.

The Gilroy shooting prompted California lawmakers to consider how to influence the debate around gun control outside Sacramento. California already has the toughest firearm regulations in the country.

Assemblyman Jesse Gabriel, an Encino (Los Angeles County) Democrat and another organizer of the letter, said the changing politics of Nevada present a unique opportunity.

After Democrats swept state elections in November, Nevada adopted laws to require background checks for private gun sales and to allow law enforcement to remove weapons from people who pose a danger to themselves or others.

"It gives us reason for optimism," Gabriel said.

He said the proposed summit could suggest stricter measures to Nevada lawmakers — such as banning assault weapons, raising the age limit for gun purchases or requiring a waiting period — as they prepare for their next session in 2021. The two states would also be able to explore how they could better partner on weapons transfers, investigations and sharing data, Gabriel said, a discussion that he hopes would eventually grow to include Arizona and Oregon.

More than a third of guns recovered in California in 2017 and traced by the federal Bureau of Alcohol, Tobacco,

Firearms and Explosives came from outside the state. Arizona was the most common point of origin, with 2,185 firearms, followed by Nevada with 1,554.

"We've seen in the past, when the federal government refuses to lead, California has not been hesitant to work with our partners on the West Coast," Gabriel said.

Frierson did not commit to the summit, but said in an email, "I welcome collaboration on gun safety issues with colleagues from other states."

He added, "Sadly, gun violence is an epidemic across the country and I believe the best way to ensure we are fully addressing this as a country is by addressing it holistically at the local, state and federal level."

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